

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Keyne Jean Villert	Team: Squad #14	CCRB Case #: 201407298	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 07/18/2014 6:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/18/2016	Precinct: 69		
Date/Time CV Reported Mon, 07/21/2014 10:44 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 07/21/2014 10:44 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Adan Munoz	01313	935372	NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Juner Cevallos	31208	945897	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . SGT Adan Munoz	Abuse: Sgt. Adan Munoz stopped § 87(2)(b)	A . Substantiated
B . SGT Adan Munoz	Force: Sgt. Adan Munoz used a chokehold against § 87(2)(b)	B . Unsubstantiated
C . SGT Adan Munoz	Force: Sgt. Adan Munoz restricted the breathing of § 87(2)(b)	C . Unsubstantiated
D . SGT Adan Munoz	Abuse: Sgt. Adan Munoz searched § 87(2)(b)	D . Substantiated
E . SGT Adan Munoz	Discourtesy: Sgt. Adan Munoz spoke rudely to § 87(2)(b)	E . Substantiated
F . SGT Adan Munoz	Abuse: Sgt. Adan Munoz frisked § 87(2)(b)	F . Substantiated
G . SGT Adan Munoz	Abuse: Sgt. Adan Munoz refused to provide his shield number to § 87(2)(b)	G . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On July 18, 2014, at approximately 6:30 p.m., § 87(2)(b) was inside his apartment, located at § 87(2)(b), when he heard officers make a forcible entry into an apartment on the § 87(2)(b) floor. § 87(2)(b) lives on the § 87(2)(b) floor with his father, § 87(2)(b) friend, § 87(2)(b) § 87(2)(b) was also present inside the apartment. § 87(2)(b) eventually exited his apartment, with § 87(2)(b) and § 87(2)(b) and was allegedly stopped by an officer, identified via investigation as Sgt. Adan Munoz from Narcotics Borough Brooklyn North (**Allegation A**). Thereafter, Sgt. Munoz allegedly grabbed and pushed § 87(2)(b) by his throat, causing his breathing to be restricted, and searched him, including his left pants pockets and underneath his pants (**within Allegation A and Allegations B, C, and D**). During the search, Sgt. Munoz allegedly stated, “Shut the fuck up” (**Allegation E**). After the search ended, Sgt. Munoz allegedly frisked § 87(2)(b) right pockets and refused to provide his shield number to § 87(2)(b) upon request (**Allegations F and G**).

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation because § 87(2)(b) filed a civil lawsuit in regard to this incident.
- § 87(2)(b) and § 87(2)(b) and their attorney, § 87(2)(b), filed a notice of claim with the City of New York on § 87(2)(b), claiming that § 87(2)(b) was choked and illegally searched by officers, and seeking an undetermined amount of money as redress. The claim indicates that § 87(2)(b) sustained a “choke injury.” (See Board Review 01).
- § 87(2)(a) Gen.Mun. §50-H(3) [REDACTED]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) (See Board Review 12).
- Sgt. Munoz has been a member of the service for ten years. The CCRB has previously substantiated two abuse of authority allegations against him.
 - In CCRB case number 200816466, Sgt. Munoz was found to have improperly searched a vehicle and the Board did not recommend any penalties in regard. Sgt. Munoz eventually received Instructions from the NYPD.
 - In CCRB case number 201403749, Sgt. Munoz was found to have improperly entered a residence and the Board recommended that he receive Charges. The administrative and disciplinary proceeding for this case is still on-going.

Officers Not Interviewed

- No additional officers were interviewed. Upon viewing a photo array, § 87(2)(b) identified three officers as potential subject or witness officers. Two of the officers pointed out by

§ 87(2)(b) Sgt. Munoz and PO Cevallos, were interviewed and confirmed they were the officers shown on the videos detailed below. The third officer, Det. David Solmonsohn from Narcotics Borough Brooklyn North, was identified by § 87(2)(b) as potentially being the subject officer. § 87(2)(g)

- Although one of the videos detailed below confirmed that a third officer was present with § 87(2)(b) Sgt. Munoz, and PO Cevallos, none of the interviewed parties could identify him, and neither the photo array viewing nor the review of the officer photographs and pedigree information could identify the officer (See Board Review 05). § 87(2)(g)

Police Documents

- The Search Warrant Pre-Execution Plan, related to this case, indicates that Sgt. Munoz, PO Cevallos, Det. Solmonsohn, Capt. Gregory Stewart, PO Andre Blake, Det. Joel Polichron, Det. Emrah Ates, Det. Evangelos Dimitrakakis, PO Richard Polanco, PO Michael Muskin, Det. Jennyann Nelson, and Det. Peter Hoeflinger, each from the Narcotics Borough Brooklyn North, were members of the entry team. (See Board Review 04).
- The electronic copy of the Stop, Question and Frisk log lists no Stop, Question and Frisk report filed by an officer from Narcotics Borough Brooklyn North for the date of this incident (See Board Review 20).

Video Footage

- On July 24, 2014, Intake Unit investigator Anastasia Plakas received from § 87(2)(b) via-email, two videos from the time of the incident. The videos were captured by § 87(2)(b) cellular phone and are detailed below:
 - The first video is located on digital file “201407298_20140724_1010_DM.MOV,” in Investigative Action number 12. The video shows Sgt. Munoz, PO Cevallos, and an unidentified officer walk through what appears to be a doorway and a stairwell landing. The camera appears to have been in very close proximity of the officers, who eventually walked away from it. PO Cevallos walked down the stairs, while the unidentified officer walked up. At the beginning of the video, the camera-holder states, “Why do I need to go in my house?” The video did not capture the direction taken by Sgt. Munoz. Throughout the recording, the camera-holder can be heard repeatedly asking, “Can I please see a badge?” No shield number was verbally provided or captured as having been shown to the camera-holder.
 - The second video is located on digital file “201407298_20140724_1009_DM.MOV” in Investigative Action number 11. The video shows Sgt. Munoz walking in a building through a doorway, passing and briefly looking toward the camera-holder as he did so. Sgt. Munoz walked in very close proximity of the camera-holder and can be heard saying, “Don’t get in my way” twice, at which point the camera-holder states, “Can I get a badge number?” twice. The video eventually shows Sgt. Munoz and PO Cevallos going up stairs inside the building. No shield number was verbally provided.

Potential Issues

- All attempts to interview § 87(2)(b) and § 87(2)(b) in person were unsuccessful. However, § 87(2)(b) provided a brief phone statement at the time of his filing of this complaint and § 87(2)(b) also provided a brief phone statement when contacted by the undersigned investigator. As mentioned above, § 87(2)(b) and § 87(2)(b) also provided a 50-h hearing testimony in regard to this incident.

Civilian Statements

- **Complainant/Victim:** § 87(2)(b)
 - § 87(2)(b) was § 87(2)(b) old at the time of the incident. § 87(2)(b) filed a complaint with IAB in regard to this incident approximately four hours after the incident, in which he complained that an officer stopped him, grabbed him by the neck, placed him against a wall, and searched his pockets for no reason. (See Board Review 03 and 19).
 - § 87(2)(b) provided a phone statement to the CCRB on July 23, 2014, and a verified statement at the CCRB on August 1, 2014. § 87(2)(b) also appeared at the CCRB on May 11, 2015, to view a photo array. As mentioned above, § 87(2)(b) participated in a 50-h hearing on § 87(2)(b), in regard to this incident. § 87(2)(a) Gen. Mun. § 50-
H(3)
 - § 87(2)(b) alleged that, after he exited his apartment, Sgt. Munoz stopped him by ordering him to get against the wall. § 87(2)(b) admitted that he did not move and alleged that Sgt. Munoz grabbed him and pushed him by the neck against the wall, causing his breathing to be restricted. § 87(2)(b) stated that he was held by the neck for approximately eight seconds, during which Sgt. Munoz searched his left pockets and frisked his right pockets. § 87(2)(b) explained that Sgt. Munoz conducted the search and frisk with his free hand.
 - § 87(2)(b) added that he was released, at which point he started recording parts of this incident. § 87(2)(b) added that, at that point, he started repeatedly asking Sgt. Munoz for his shield number. § 87(2)(b) alleged that Sgt. Munoz refused to provide his shield number upon request.
 - § 87(2)(b) stated that Sgt. Munoz was present at the time officers executed a search warrant at his home approximately three weeks prior to this incident. At that point, § 87(2)(b) was accused of having sold crack cocaine. § 87(2)(a) Gen. Mun. § 50-
H(2)
- **Complainant/Witness:** § 87(2)(b)
 - § 87(2)(b) is the father of § 87(2)(b) § 87(2)(b) provided a brief phone statement, upon his filing of this complaint on July 21, 2014, and later failed to provide a verified statement to the CCRB.
 - § 87(2)(b) stated that an officer choked § 87(2)(b) another one held him, and yet another one searched his pockets.
- **Witness:** § 87(2)(b)
 - § 87(2)(b) is a friend of § 87(2)(b) § 87(2)(b) provided a phone statement on

- March 10, 2015, and failed to later provide a verified statement to the CCRB.
- § 87(2)(b) explained that officers physically placed § 87(2)(b) against a wall, entered his pockets, touched his genitals, and released him. § 87(2)(b) was upset about the officers' actions and eventually started recording the incident. § 87(2)(b) asked the officers questions, such as requests for their names or shield numbers or why they had searched him, but the officers ignored him. (See Board Review 07).

NYPD Statements

- **Subject Officer: SGT. ADAN MUNOZ**

- Sgt. Munoz was interviewed at the CCRB on April 16, 2015. Sgt. Munoz denied having a recollection of this incident.
- Sgt. Munoz eventually viewed the videos of this incident, at which point he identified himself on each video. Sgt. Munoz was unable to identify any other officer shown. Sgt. Munoz denied that the videos helped him remember this incident.
- Sgt. Munoz stated that, based on the videos, § 87(2)(b) was close to the officers, was preventing them from accessing the apartment for which they had executed a search warrant, and could have attempted to distract the officers from their mission. Sgt. Munoz further stated that it would not have been practical nor safe for him to provide his shield number to § 87(2)(b) even after having distanced himself from § 87(2)(b) while he was still in the midst of his operation. Sgt. Munoz explained that the apartment in question was still being searched and that arrestees, evidence, and gear still had to be brought down. Sgt. Munoz further explained that he would have provided his shield number if it had been requested after the conclusion of the operation.

- **Witness Officer: PO JUNER CEVALLOS**

- PO Cevallos was interviewed at the CCRB on May 27, 2015. PO Cevallos denied having a recollection of this incident.
- PO Cevallos eventually viewed the videos of this incident, at which point he identified himself and Sgt. Munoz on the videos. PO Cevallos was unable to identify the only other officer shown. PO Cevallos denied that the videos helped him remember this incident.

Findings and Recommendations

Explanation of Subject Officer Identifications

In § 87(2)(b) initial complaint, he indicated that three officers were responsible for three different allegations of misconduct. However, § 87(2)(b) who was the victim of the alleged misconduct and who gave a more detailed statement, claimed that a single officer committed all of the alleged misconduct. § 87(2)(b) provided a description of the subject officer that closely matches the pedigree information of Sgt. Munoz. Additionally, § 87(2)(b) identified Sgt. Munoz in a photo array as a potential subject officer. Further, Sgt. Munoz and PO Cevallos confirmed that one of the officers shown on video footage of the incident, who § 87(2)(b) claimed to have been the subject officer, is Sgt. Munoz. § 87(2)(g)

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Allegations Not Pled

§ 87(2)(g)

Allegation A – Abuse of Authority: Sgt. Adan Munoz stopped § 87(2)(b)

Allegation D – Abuse of Authority: Sgt. Adan Munoz searched § 87(2)(b)

Allegation E – Discourtesy: Sgt. Adan Munoz spoke rudely to § 87(2)(b)

Allegation F – Abuse of Authority: Sgt. Adan Munoz frisked § 87(2)(b)

Allegation G – Abuse of Authority: Sgt. Adan Munoz refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Munoz first ordered him to get against a wall and not move, and then pushed him against the wall by the neck (which is pleaded separately below). § 87(2)(b) explained that Sgt. Munoz continued to hold him against the wall and searched his left pockets and under his clothing. § 87(2)(b) further alleged that Sgt. Munoz then patted the outside of his clothing, specifically his front and back right pockets, and also told him to “shut the fuck up,” before eventually releasing him. § 87(2)(b) added that, thereafter, Sgt. Munoz also repeatedly failed to provide his shield number upon request. § 87(2)(b) stated that he did not start recording the incident until after he was released. § 87(2)(b) stated that he wore a t-shirt and jeans and carried his cell phone in one of his hands. § 87(2)(b) added that his pants only contained tissues inside his back left pocket. § 87(2)(b) explained that the rest of his possessions were inside his apartment.

In his initial complaint, § 87(2)(b) corroborated that § 87(2)(b) was stopped, physically held, and searched; however, as discussed above, he attributed these actions to different officers.

In a phone statement, § 87(2)(b) detailed a sequence of events generally consistent with § 87(2)(b) statement; however, he made no mention of a chokehold. § 87(2)(b) explained that officers pushed § 87(2)(b) frisked him, searched him, including under his clothing, and that § 87(2)(b) asked officers questions, such as requests for their names or shield number or why he had been searched.

Video footage indicates that Sgt. Munoz instructed § 87(2)(b) to not get in his way and that § 87(2)(b) then repeatedly asked Sgt. Munoz for his shield number. The footage further indicates that Sgt. Munoz did not provide the requested information and instead walked away from § 87(2)(b).

Neither Sgt. Munoz nor PO Cevallos remembered this incident. However, after viewing video footage of this incident, Sgt. Munoz stated that he would have had provided his shield number had § 87(2)(b) requested it after the officers had concluded their mission. Sgt. Munoz added that, based on the videos, § 87(2)(b) posed a danger to the officers.

The Court of Appeals of New York held in People v. Debour, 40 N.Y.2d 210 (1976), that officers can forcibly stop and detain an individual based on a reasonable suspicion that he has committed, is committing, or is about to commit a crime (See Board Review 17).

In addition, People v. Moore, 93 A.D.3d 519 (1st Dept. 2012) held that an interaction is raised to a seizure whenever physical force is used, or if no physical force is used, the person is

submitted to the assertion of authority (See Board Review 16).

Debour further held that that officers can frisk a person if they reasonably suspect that they are in danger of physical injury by virtue of that person being armed.

According to Patrol Guide Procedure 212-11, officers are allowed to search an individual when a frisk reveals an object which may be a weapon (See Board Review 15).

Furthermore, Patrol Guide Procedure 208-05 indicates that, for safety purposes, officers are allowed to frisk and search an arrestee in the field. It adds that “a thorough external body examination is made by sliding the hand over the subject’s body, feeling for weapons or other objects, with special attention to the waistband, armpit, collar, and groin areas.” Furthermore, it indicates that, during such a frisk or search, “if an unusual object is detected, the officer will reach into or under the clothing to remove it.” (See Board Review 14).

Lastly, Patrol Guide Procedure 203-09 indicates that officers should be courteous and respectful while interacting with civilians and should clearly state their names and shield numbers upon request. (See Board Review 13).

§ 87(2)(g)

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As such, it is recommended that **Allegations A, D, E, F, and G** be closed as **substantiated**.

Allegation B – Force: Sgt. Adan Munoz used a chokehold against § 87(2)(b)

Allegation C – Force: Sgt. Adan Munoz restricted the breathing of § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Munoz grabbed and pushed him by the neck and held him in that manner for approximately eight seconds, causing his breathing to be restricted.

§ 87(2)(b) corroborated that § 87(2)(b) was choked.

As mentioned above, § 87(2)(b) detailed a sequence of events generally consistent with § 87(2)(b) statement; however, he made no mention of a chokehold despite providing an otherwise detailed statement.

Neither Sgt. Munoz nor PO Cevallos remembered this incident.

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§ 87(2)(g)

It is therefore recommended that **Allegations B** and **C** be closed as **unsubstantiated**.

[illegible]

Pod: 14

Investigator: _____ Keyne Jean Villert _____
Signature Print Date

Supervisor: _____
 Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date